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CASE NAME: Creative Artists Agency, LLC, v. Range Media Partners, LLC

CASE NO.: 24SMCV04697

MOTION: Demurrer to the First Amended Cross-Complaint

HEARING DATE: 7/10/2026

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff needs only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (Ibid.)

Any party, within the
time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"Liberality in
permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that amendment will change the legal effect of the pleading.¿(Id.)

ANALYSIS

Plaintiff/Cross-Defendants
Creative Artists Agency, LLC; Creative Artists Holdings,

LLC; CAA Holdings, LLC; And
CAA Equity Incentive Series 2, LLC (collectively, "CAA")

demur and moves to strike
portions of the First Amended Cross-Complaint ("FACC") filed by Defendants/Cross-Complainant Range Media Partners, LLC ("Range"). CAA demurs to each cause of action, and moves to strike paragraphs 8, 44 (re: press reports

concerning the arbitration rulings) of the FACC.

Request for Judicial Notice

CAA's request is DENIED as irrelevant. CAA proffers extrinsic evidence (its own discovery responses) to show the falsity of the subject allegations, i.e., that no CAA agent disclosed any interest in leaving for Range to CAA leadership.

UCL (Bus. & Prof. Code §17200)

Generally, CAA argues that Range lacks standing to assert a claim based on contracts to which it is not a party and it cannot establish injury in fact. The Court has already considered and overruled these objections in the prior demurrer. The same reasoning requires the same result here.

The only new argument CAA raises pertains to whether Range must identify a specific transaction as unlawful or unfair, such as specific agreement with a specific agent, or provision within such an agreement. However, CAA cites no authority that such specificity would be needed to plead a cause of action under the UCL. The UCL only requires that a plaintiff plead the existence of a business practice that is unlawful, unfair, or fraudulent, with "reasonable particularity," and not the evidentiary details of a specific business transaction. (See Khoury v. Maly's of California, Inc., (1993) 14 Cal.App.4th 612, 619 [allegations were deficient because the pleading "identifie[d] no particular section of the statutory scheme which was violated and fail[ed] to describe with any reasonable particularity the facts supporting violation"]; McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1469 [rules of pleading only require general allegations of ultimate fact, including UCL claims].) The Court already found that Range pled the existence of such a practice. The FACC alleges that CAA's noncompete agreements it requires its agents to sign are allegedly illegal under California law, which CAA allegedly uses to chill competition. (FACC ¶¶ 62-64.) Range asserts that such conduct is unfair because it violates the letter and spirit of Bus. & Prof. Code sections 16600, 16600.1, and 16600.5, and provides facts supporting violations of those statutes. (FACC ¶¶ 11-13, 46-59.) Therefore, the FACC identifies the subject business practice at issue with reasonable particularity.

Accordingly,
the demurrer is OVERRULED as to this cause of action.

Intentional Interference
Prospective Economic Advantage

CAA argues that the second cause of action fails to plead an actual economic relationship, CAA's knowledge of the relationship, a resulting harm, or an independently wrongful act.

The elements for the tort of intentional interference with prospective economic advantage are: "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153.) "A plaintiff must establish an existing relationship to establish a claim for intentional interference with prospective economic advantage." (Salma v. Capon (2008) 161 Cal.App.4th 1275, 1291.) The tort "'protects the expectation that the relationship eventually will yield the desired benefit, not necessarily the more speculative expectation that a potentially beneficial relationship will arise". (Korea Supply Co., supra, 29 Cal.4th at 1164.) Thus, generalized allegations regarding interference with potential customers are insufficient to state a cause of action. (Id.; see Roth v. Rhodes (1994) 25 Cal.App.4th 530, 546 [allegation that the defendant interfered with relations with future customers is insufficient to show an existing relationship].)

The FACC adequately pleads the elements of intentional interference. The FACC alleges existing prospective economic relationships between Range (via its founders) and certain current/former agents of CAA. Micelli, a Range founder, maintained longstanding personal and professional relationships with numerous CAA agents who worked with him, and has continued to maintain those relationships to this day even after leaving CAA. (FACC ¶ 54, 58.) Micelli spoke with specific (albeit unnamed) CAA agents about joining Range as managers and has endeavored to hire more CAA agents. (Id.)

Likewise, the Four Former CAA Employees and other CAA employees who have joined Range had longstanding personal and professional relationships with numerous CAA agents, and they have continued to speak with those agents through today, including about the opportunity to join Range and work as managers. (Id.) In fact, Range has successfully hired former CAA agents and employees into roles as managers, demonstrating that these existing relationships would likely yield a desired benefit. (Id.) For example, Range and Micelli actively recruited several CAA agents to join Range, including making offers to them and explaining the compensation they would receive at Range, and those prospective Range managers expressed interest in joining Range. (FACC ¶ 56.) However, CAA knew these agents and prospective Range managers were being recruited by Range, that Range had made offers, and the agents were interested in joining, and attempted to disrupt these relationships by threatening to cancel agents' equity if they left to join Range, pursuant to its allegedly unlawful noncompete agreements. (FACC ¶¶ 53-56.) The FACC raises a specific example where a CAA agent, Christian Carino, told prospective Range managers that CAA would cancel their vested equity pursuant to CAA's purported noncompete provisions if they joined Range. (FACC ¶¶ 57-58.) Those CAA agents either remained at CAA or chose other management companies rather than Range because CAA threatened to cancel their vested equity if they joined Range specifically. (Id.) These allegations establish that the CAA agents are not a speculative class of unknown prospective agents, but rather agents that have an established relationship with Range. These same factual allegations demonstrate that CAA had knowledge of existing prospective economic relationships, and intentionally disrupted those relationships through the independently wrongful means of threatening the agents with allegedly void noncompete agreements. The FACC also establishes actual harm from the disruption. But for CAA's threats to cancel vested equity pursuant to unlawful and void noncompete provisions, certain CAA agents would have joined Range, bringing with them valuable relationships, management expertise, client opportunities, and revenue. (FACC ¶ 59.)

CAA argues that the current/former agents should be specifically named in the allegations. However, CAA cites no authority that the name of third parties must be specifically alleged. Even under CAA's cited federal authority and the corresponding stricter federal pleading standard, the FACC has identified particular relationships and opportunities with which CAA's conduct is alleged to have interfered. (Damabeh v. 7-Eleven, Inc., (N.D. Cal. May 8, 2013) No. 5:12-CV-1739-LHK, 2013 WL 1915867, at *10 (claim failed because Plaintiff did not identify specific relationship defendant interfered with); see also 7EDU Impact Academy

Inc. v. You (N.D. Cal. 2024) 760 F.Supp.3d 981, 1001 ("7EDU is not required at the pleading stage to identify by name the prospective clients, 7EDU is required 'to identify a particular relationship or opportunity with which the defendant's conduct is alleged to have interfered'"].) The agents' names would be an evidentiary fact, rather than ultimate fact, that is not required for pleading purposes. The FACC meets the pleading standard apprising CAA of the factual basis of the claim – Range maintained an existing prospective economic relationship with certain agents of CAA.

Accordingly, the demurrer is OVERRULED.

Motion to Strike

CAA argues that paragraphs 8 and 44 of the FACC should be stricken as irrelevant. CAA contends that Range has agreed to certain protective orders which forbid disclosure of materials from the arbitration proceeding and Range's disclosure is a thinly veiled work-around to that order through alleged media reporting.

Technically, Range is probably not violating the protective order in the arbitration proceeding by repeating media reports as to that proceeding, even though those reports would have been based upon violations of the protective order. However, the Court concludes that these recitations of media reporting of the arbitration are irrelevant and ancillary to the dispute. Also, these paragraphs contain hearsay characterizations of an unresolved proceeding, and as such, are not well-pled facts supporting any claim for relief. (CCP § 425.10(a)(1) & (2).) The Court is not imposing a protective order or otherwise restraining Range (although Range agreed to such a restraint in signing the arbitration protective order) from repeating media statements regarding the arbitration, but finding those statements to be not well pled

Accordingly, the motion to strike is GRANTED as to FACC paragraphs 8 and 44.

Cross-Defendants to file an answer within 20 days.